

24STCV02413 24STCV02413

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C06%2F23%2F2026

Source SHA-256: 9260cc91bf03ff47f68b0accc834975f3efb69d8a56723bcc40421b9d0c32c6c

Case Number: 24STCV02413 Hearing Date: June 23, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

GILBERT ZUNIGA,

Plaintiff,

v.

GENERAL MOTORS LLC, et al.,

Defendants.

Case No:

24STCV02413

Hearing Date: June 23, 2026

Calendar Number: 4

Plaintiff Gilbert Zuniga moves to tax Defendant General

Motor's LLC Memorandum of Costs.

Plaintiff's motion to tax costs is GRANTED. The Court

strikes the cost memorandum of Defendant in its entirety.

Background

This is a Song-Beverly Act and Breach of Warranty Action.

Plaintiff filed this action against Defendant, a Delaware limited liability

company registered to do business in California. Plaintiff claims he purchased

a defective 2018 GMC Sierra 1500 from Alfred Matthews, Inc., and received

express written warranties from Defendant covering defects in utility or

performance. (First Amended Complaint, ¶¶ 9-11.)

On January 30, 2024, Plaintiff filed this action.

On May 28, 2025, Plaintiff filed the operative First Amended

Complaint alleging six causes of action for, inter alia, Violation of

the Song Beverly Act Civil Code section 1793.2(d) and breach of implied

warranty of merchantability.

On June 26, 2025, Defendant answered the First Amended

Complaint.

On October 10, 2025, after hearing and taking the matter

under submission, the Court granted Defendant's motion for summary judgment.

(See 10/10/25 Minute Order.) Also, on such date, the Clerk electronically served the Court's minute order on counsel for the parties. (See 10/10/25 Clerk's Certificate of Service by Electronic Service.)

On October 29, 2025, the Court entered judgment in favor of Defendant. Also, on such date, the Court electronically served notice of entry of judgment on counsel for the parties. (See 10/29/25 Clerk's Certificate of Service by Electronic Service.)

On April 23, 2026, Defendant filed and served a memorandum of costs.

On May 12, 2026, Plaintiff filed and served the instant motion to tax costs.

As of Wednesday, June 17, 2026, as of 12:15 P.M., no opposition has been filed. Any opposition was required to have been filed and served at least nine court days prior to the hearing. (Code Civ. Proc., § 1005, subd. (b).) The lack of written opposition may be deemed a consent to the granting of the motion. (Cal. Rules of Court, Rule 8.54(c).)

Legal Standard

"Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).)

“The right to recover . . . costs is determined entirely by statute.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 71.) “In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face.” (Ibid.) “If so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable.” (Ibid. [citation omitted].) Items not expressly allowed or prohibited by CCP § 1033.5 “may be allowed or denied in the court’s discretion.” (Code Civ. Proc., § 1033.5, subd. (c)(4).) An award of costs is subject to the limitation that “[a]llowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) Moreover, costs which are allowed “shall be reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)(3).) “[I]tems on a verified cost bill are prima facie evidence the costs, expenses and services listed were necessarily incurred, and when they are properly challenged the burden of proof shifts to the party claiming them as costs.” (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “[T]he burden is upon the moving party to establish the illegality of the challenged items; otherwise the amount demanded in the verified cost bill is

controlling.” (Wilson v. Nichols, (1942) 55 Cal.App.2d 678, 682-83.) “If

the items appearing on a cost bill appear to be proper charges, the burden is

on the party seeking to tax costs to show that they were not reasonable or

necessary.” (Ladas v. California State Auto Assn. (1993) 19 Cal.App.4th

761, 774.) “On the other hand, if the items are properly objected to, they are

put in issue, and the burden of proof is on the party claiming them as costs.” (Ibid.)

“[T]he mere filing of a motion to tax costs may be a proper objection to an

item, the necessity of which appears doubtful, or which does not appear to be

proper on its face.” (Nelson v. Anderson, (1999) 72 Cal.App.4th 111, 131

[internal quotations omitted].) “

Discussion

The

Memorandum of Costs is Untimely

“A

prevailing party who claims costs must file and serve a memorandum of costs

within 15 days after the date of service of the notice of entry of judgment or

dismissal by the clerk under Code of Civil Procedure section 664.5 or the

date of service of written notice of entry of judgment or dismissal,

or within 180 days after entry of judgment, whichever is first.

The memorandum of costs must be verified by a statement of the party, attorney,

or agent that to the best of his or her knowledge the items of cost are correct

and were necessarily incurred in the case.” (Cal. Rules of Court,

Rule 3.1700(a) [italics added].) “[I]f a party fails within the time

prescribed to file and serve his memorandum of costs, then he is to be

conclusively deemed to have waived the costs . . . and if the memorandum be

served or filed too late it will be stricken from the files on motion”

(Coast Electric Service v. Jensen (1931) 111 Cal.App. 124, 126 [called

into doubt on other grounds in Lee v. Wells Fargo Bank, N.A. (2001) 88

Cal.App.4th 1187] [italics in original].)

The Clerk

served notice of entry of judgment on October 29, 2025. (Declaration of David

Derderian Filed May 12, 2026 (“Derderian Decl.”), ¶ 11, Exh. A.) Defendant filed

and served its memorandum of costs on April 23, 2026. (Id., ¶ 12; Exh.

B.)

The

Court finds that the memorandum of costs is untimely and is stricken in its

entirety pursuant to Coast Electric Service v. Jensen, supra, 111

Cal.App. 124, 126.) The memorandum of costs should have been filed within 15

days of October 29, 2025. (Cal. Rules of Court, Rule 3.1700(a).) Accordingly,

the memorandum of costs is untimely as it was not filed and served until April

23, 2026. Due to the lack of opposition to the instant motion, Defendant has

conceded to all the arguments raised therein. (See Moulton Niguel Water

Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)

Plaintiff's

motion to tax costs is GRANTED. The Court strikes the cost memorandum of

Defendant in its entirety.

Plaintiff is ordered to give notice.